

State and location	Community No.	Effective date authorization/cancellation of sale of flood insurance in community	Current effective map date	Date certain Federal assistance no longer available in SFHAs
Region VI				
Texas: Palacios, City of, Matagorda County	485495	August 7, 1970, Emerg; November 17, 1970, Reg; January 15, 2021, Susp.	do	Do.
Region VII				
Iowa:				
Ames, City of, Story County	190254	July 25, 1974, Emerg; January 2, 1981, Reg; January 15, 2021, Susp.	do	Do.
Cambridge, City of, Story County	190255	July 29, 1974, Emerg; June 15, 1981, Reg; January 15, 2021, Susp.	do	Do.
Collins, City of, Story County	190719	N/A, Emerg; December 12, 2007, Reg; January 15, 2021, Susp.	do	Do.
Huxley, City of, Story County	190597	N/A, Emerg; May 5, 2008, Reg; January 15, 2021, Susp.	do	Do.
Maxwell, City of, Story County	190257	July 24, 1975, Emerg; February 15, 1984, Reg; January 15, 2021, Susp.	do	Do.
McCallsburg, City of, Story County	190315	N/A, Emerg; September 6, 2013, Reg; January 15, 2021, Susp.	do	Do.
Nevada, City of, Story County	190258	November 25, 1974, Emerg; August 3, 1981, Reg; January 15, 2021, Susp.	do	Do.
Slater, City of, Story County	190659	N/A, Emerg; February 15, 2008, Reg; January 15, 2021, Susp.	do	Do.
Story City, City of, Story County	190259	June 25, 1975, Emerg; January 16, 1981, Reg; January 15, 2021, Susp.	do	Do.
Zearing, City of, Story County	190260	September 28, 1976, Emerg; May 1, 1987, Reg; January 15, 2021, Susp.	January 15, 2021.	January 15, 2021.
Region VIII				
Colorado:				
Arvada, City of, Adams and Jefferson Counties.	085072	April 30, 1971, Emerg; June 23, 1972, Reg; January 15, 2021, Susp.	do	Do.
Berthoud, Town of, Larimer County	080296	October 28, 1977, Emerg; May 26, 1978, Reg; January 15, 2021, Susp.	do	Do.
Jefferson County, Unincorporated Areas.	080087	July 5, 1973, Emerg; August 5, 1986, Reg; January 15, 2021, Susp.	do	Do.
Johnstown, Town of, Larimer and Weld Counties.	080250	August 22, 2003, Emerg; December 19, 2006, Reg; January 15, 2021, Susp.	do	Do.
South Dakota: Union County, Unincorporated Areas.	460242	April 23, 1975, Emerg; February 1, 1987, Reg; January 15, 2021, Susp.	do	Do.

*-do- = Ditto.

Code for reading third column: Emerg.—Emergency; Reg.—Regular; Susp.—Suspension.

Katherine B. Fox,

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Federal Insurance and Mitigation
Administration—FEMA Resilience,
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Emergency Management Agency.*

[FR Doc. 2021–00609 Filed 1–12–21; 8:45 am]

BILLING CODE 9110–12–P

FEDERAL MARITIME COMMISSION

46 CFR Part 506

[Docket No. 21–01]

RIN 3072–AC85

Inflation Adjustment of Civil Monetary Penalties

AGENCY: Federal Maritime Commission.

ACTION: Final rule.

SUMMARY: The Federal Maritime Commission (Commission) is publishing this final rule to adjust for inflation the civil monetary penalties assessed or enforced by the Commission, pursuant to the Federal Civil Penalties Inflation Adjustment Act Improvements Act of 2015 (2015 Act). The 2015 Act requires that agencies adjust and publish their civil penalties by January 15 each year.

DATES: This rule is effective January 15, 2021.

FOR FURTHER INFORMATION CONTACT: Rachel E. Dickon, Secretary; Phone: (202) 523–5725; Email: *secretary@fmc.gov*.

SUPPLEMENTARY INFORMATION: This rule adjusts the civil monetary penalties assessable by the Commission in accordance with the 2015 Act, which became effective on November 2, 2015. Public Law 114–74, section 701. The 2015 Act further amended the Federal

Civil Penalties Inflation Adjustment Act of 1990 (FCPIAA), Public Law 101–410, 104 Stat. 890 (codified as amended at 28 U.S.C. 2461 note), in order to improve the effectiveness of civil monetary penalties and to maintain their deterrent effect.

The 2015 Act requires agencies to adjust civil monetary penalties under their jurisdiction by January 15 each year, based on changes in the consumer price index (CPI–U) for the month of October in the previous calendar year. On December 23, 2020, the Office of Management and Budget published guidance stating that the CPI–U multiplier for October 2020 is 1.01182.¹ In order to complete the adjustment for

¹ Office of Management and Budget, M–21–10, Implementation of Penalty Inflation Adjustments for 2021, Pursuant to the Federal Civil Penalties Inflation Adjustment Act Improvements Act of 2015, at 1 (Dec. 23, 2020) (M–21–10).

January 2021, the Commission must multiply the most recent civil penalty amounts in 46 CFR part 506 by the multiplier, 1.01182.

Rulemaking Analyses and Notices

Notice and Effective Date

Adjustments under the FCPIAA, as amended by the 2015 Act, are not subject to the procedural rulemaking requirements of the Administrative Procedure Act (APA) (5 U.S.C. 553), including the requirements for prior notice, an opportunity for comment, and a delay between the issuance of a final rule and its effective date.² As noted above, the 2015 Act requires that the Commission adjust its civil monetary penalties no later than January 15 of each year.

Congressional Review Act

The rule is not a “major rule” as defined by the Congressional Review Act, codified at 5 U.S.C. 801 *et seq.* The rule will not result in: (1) An annual effect on the economy of \$100,000,000 or more; (2) a major increase in costs or prices; or (3) significant adverse effects on competition, employment, investment, productivity, innovation, or the ability of United States-based companies to compete with foreign-based companies. 5 U.S.C. 804(2).

Regulatory Flexibility Act

The Regulatory Flexibility Act (codified as amended at 5 U.S.C. 601–612) provides that whenever an agency

promulgates a final rule after being required to publish a notice of proposed rulemaking under the APA (5 U.S.C. 553), the agency must prepare and make available a final regulatory flexibility analysis describing the impact of the rule on small entities or the head of the agency must certify that the rule will not have a significant economic impact on a substantial number of small entities. 5 U.S.C. 604–605. As indicated above, this final rule is not subject to the APA’s notice and comment requirements, and the Commission is not required to either conduct a regulatory flexibility analysis or certify that the final rule would not have a significant economic impact on a substantial number of small entities.

Paperwork Reduction Act

The Paperwork Reduction Act of 1995 (44 U.S.C. 3501–3521) requires an agency to seek and receive approval from the Office of Management and Budget (OMB) before collecting information from the public. 44 U.S.C. 3507. The agency must submit collections of information in rules to OMB in conjunction with the publication of the notice of proposed rulemaking. 5 CFR 1320.11. This final rule does not contain any collection of information, as defined by 44 U.S.C. 3502(3) and 5 CFR 1320.3(c).

Regulation Identifier Number

The Commission assigns a regulation identifier number (RIN) to each

regulatory action listed in the Unified Agenda of Federal Regulatory and Deregulatory Actions (Unified Agenda). The Regulatory Information Service Center publishes the Unified Agenda in April and October of each year. The public may use the RIN contained in the heading at the beginning of this document to find this action in the Unified Agenda, available at <http://www.reginfo.gov/public/do/eAgendaMain>.

List of Subjects in 46 CFR Part 506

Administrative practice and procedure, Claims, Penalties.

For the reasons stated in the preamble, 46 CFR part 506 is amended as follows:

PART 506—CIVIL MONETARY PENALTY INFLATION ADJUSTMENT

■ 1. The authority citation for part 506 continues to read as follows:

Authority: 28 U.S.C. 2461.

■ 2. Amend § 506.4 by revising paragraph (d) to read as follows:

§ 506.4 Cost of living adjustments of civil monetary penalties.

* * * * *

(d) *Inflation adjustment.* Maximum civil monetary penalties within the jurisdiction of the Federal Maritime Commission are adjusted for inflation as follows:

TABLE 1 TO PARAGRAPH (d)

United States Code citation	Civil monetary penalty description	Maximum penalty as of January 15, 2020	Maximum penalty as of January 15, 2021
46 U.S.C. 42304	Adverse impact on U.S. carriers by foreign shipping practices	\$2,140,973	\$2,166,279
46 U.S.C. 41107(a)	Knowing and Willful violation/Shipping Act of 1984, or Commission regulation or order.	61,098	61,820
46 U.S.C. 41107(a)	Violation of Shipping Act of 1984, Commission regulation or order, not knowing and willful.	12,219	12,363
46 U.S.C. 41108(b)	Operating in foreign commerce after tariff suspension	122,197	123,641
46 U.S.C. 42104	Failure to provide required reports, etc./Merchant Marine Act of 1920	9,639	9,753
46 U.S.C. 42106	Adverse shipping conditions/Merchant Marine Act of 1920	1,927,676	1,950,461
46 U.S.C. 42108	Operating after tariff or service contract suspension/Merchant Marine Act of 1920.	96,384	97,523
46 U.S.C. 44102, 44104	Failure to establish financial responsibility for non-performance of transportation.	24,346	24,634
		812	822
46 U.S.C. 44103, 44104	Failure to establish financial responsibility for death or injury	24,346	24,634
		812	822
31 U.S.C. 3802(a)(1)	Program Fraud Civil Remedies Act/making false claim	11,665	11,803
31 U.S.C. 3802(a)(2)	Program Fraud Civil Remedies Act/giving false statement	11,665	11,803

² FCPIAA section 4(b)(2); M–21–10 at 3.

By the Commission.

Rachel Dickon,
Secretary.

[FR Doc. 2021–00323 Filed 1–12–21; 8:45 am]

BILLING CODE 6730–02–P

FEDERAL COMMUNICATIONS COMMISSION

47 CFR Part 64

[CG Docket No. 20–93; FCC 20–171; FRS 17291]

Protecting Consumers From One-Ring Scams

AGENCY: Federal Communications Commission.

ACTION: Final rule.

SUMMARY: In this document, the Federal Communications Commission (FCC or Commission) implements section 12 of the TRACED Act in order to enable voice service providers to block calls from numbers associated with a type of illegal robocall known as a one-ring scam. The Commission also, pursuant to the TRACED Act, expands collaborative law enforcement and consumer education activities to stop one-ring scams and other fraudulent and abusive robocalling practices. The measures adopted by the Commission empower voice service providers to stop these illegal robocalls and will give consumers substantial additional protection from these scams.

DATES: Effective February 12, 2021.

FOR FURTHER INFORMATION CONTACT: Mika Savir of the Consumer Policy Division, Consumer and Governmental Affairs Bureau, at mika.savir@fcc.gov or (202) 418–0384.

SUPPLEMENTARY INFORMATION: This is a summary of the Commission's Report and Order, FCC 20–171, CG Docket No. 20–93, adopted on November 24, 2020, and released on November 30, 2020. The full text of this document is available online at <https://docs.fcc.gov/public/attachments/FCC-20-171A1.docx>. To request this document in accessible formats for people with disabilities (e.g., Braille, large print, electronic files, audio format) or to request reasonable accommodations (e.g., accessible format documents, sign language interpreters, CART), send an email to fcc504@fcc.gov or call the FCC's Consumer and Governmental Affairs Bureau at (202) 418–0530 (voice), (202) 418–0432 (TTY).

Congressional Review Act

The Commission sent a copy of document FCC 20–171 to Congress and

the Government Accountability Office pursuant to the Congressional Review Act, 5 U.S.C. 801(a)(1)(A).

Final Paperwork Reduction Act of 1995 Analysis

The Report and Order does not contain any new or modified information collection requirements subject to the Paperwork Reduction Act of 1995, Public Law 104–13. It, therefore, does not contain any new or modified information collection burden for small business concerns with fewer than 25 employees, pursuant to the Small Business Paperwork Relief Act of 2002, Public Law 107–198, *see* 44 U.S.C. 3506(c)(4).

Synopsis

1. In the Report and Order, the Commission implements section 12 of the Pallone-Thune Telephone Robocall Abuse Criminal Enforcement Act (TRACED Act), Public Law 116–105, 12, December 30, 2019, 133 Stat. 3286 (codified at 47 U.S.C. 227 note). Section 12 of the TRACED Act directs the Commission to consider taking additional steps to protect called parties from a type of illegal call known as the one-ring scam. In the Report and Order, the Commission adopts the proposal in the Notice of Proposed Rulemaking (NPRM), published at 85 FR 30672, May 20, 2020, with some minor modifications. The Commission adds a new paragraph (k)(2)(iv) to 47 CFR 64.2400 to allow voice service providers to block all calls from a telephone number that the provider identifies, based on reasonable analytics, as highly likely to be associated with a one-ring scam. The Commission also adopts a definition of one-ring scam in paragraph (f)(8) that is consistent with the definition set forth in the proposed rule: The term one-ring scam means a scam in which a caller makes a call and allows the call to ring the called party for a short duration, in order to prompt the called party to return the call, thereby subjecting the called party to charges.

2. Based on the record, the Commission concludes that these rule changes will help protect consumers from the scam and, consistent with section 12(b)(4) of the TRACED Act, will incentivize voice service providers to stop calls made to perpetrate one-ring scams from being received by called parties. This rule amendment is also consistent with the congressional directive in the same section of the statute regarding the addition of identified one-ring scam type numbers to the Commission's existing list of permissible categories for carrier-

initiated blocking. In addition, pursuant to section 12(b)(5) of the TRACED Act, this rule takes into account and relies, in part, on the work of entities that provide call-blocking services to address one-ring scams.

3. One-ring scam calls serve no beneficial purpose, and thus no reasonable consumer would want to receive them. Accordingly, the Commission does not require terminating providers to give their customers an opportunity to opt out of the blocking of such calls. The Commission encourages voice service providers to implement call-blocking measures that will help eliminate or reduce the number of one-ring scam calls that reach consumers.

4. The Commission also extends to one-ring scam blocking the safe harbor for inadvertent blocking of wanted robocalls using reasonable analytics. This safe harbor gives voice service providers assurance that blocking of one-ring scam calls based on reasonable analytics will not result in liability if they inadvertently block wanted calls, and it thus strengthens their ability and incentive to protect consumers from such scams. For this reason, the Commission is adding a reference to reasonable analytics—a term that was not included in the rule text proposed in the NPRM—to paragraph (k)(2)(iv) of the final rule.

5. While voice service providers already have authority to block illegal one-ring scam calls, the rule adopted herein will remove any doubt that voice service providers may lawfully use reasonable analytics to identify and block calls that appear to be one-ring scam calls, even if such identification proves to be erroneous in any particular instance; that they may do so without fear of liability for inadvertently blocking wanted calls; and that they may do so on a network-wide basis. The Commission believes this will strongly encourage voice service providers to take a more aggressive approach to blocking one-ring scam calls and thus will further protect consumers from such scams.

6. Some commenters recommended that the Commission focus on combatting one-ring scam calls that fraudulently induce consumers to place calls to premium-rate numbers under a foreign government's national numbering plan, subject to analytics that suggest reasonable cause to treat such inbound calls as scam calls. The Commission agrees that voice service providers could block such inbound calls if they satisfy the applicable criteria in the rules.